There is nothing in this statutory language to suggest that a judgment of acquittal, as opposed to a dismissal, is appealable.

The legislative history demonstrates that Congress intended to eliminate nonconstitutional barriers to appeals from dismissals, but did not intend to allow appeals from acquittals. As this Court has recognized, the Senate Report is the key to the legislative history.[3] The Report opens by describing the purpose of the bill as being "to resolve serious problems which frequently have arisen with respect to the right of the United States to appeal rulings which terminate prosecutions *other than by judgments of acquittal* . . . ." S. Rep. No. 91–1296, p. 2 (1970) (emphasis added). Apart from the problem of direct Supreme Court review, the Report states that the "major problem that has arisen under the present statute concerns the total lack of appealability of *certain kinds of dismissals and suppressions.*" *Id.*, at 4 (emphasis added). The Report then discusses at length the then-existing limitations on appeals from dismissals.[4] The Committee believed

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[3] The significance of this Senate Report in understanding the Act was well expressed in *Serfass* v. *United States*, *supra*, at 387 n. 10:

"The relevance and significance of the 'well considered and carefully prepared' report of the Senate Judiciary Committee, see *Schwegmann Bros.* v. *Calvert Distillers Corp.*, 341 U. S. 384, 395 (1951) (Jackson, J., concurring), is not affected by the fact that the amendments proposed by the Committee and adopted without change by the Senate were modified by the House-Senate Conference Committee. See H. R. Conf. Rep. No. 91–1768, p. 21 (1970). The latter report contains no explanation of the changes made, and the changes themselves are consistent with the intent expressed in the Senate Report. See *United States* v. *Wilson*, *ante*, at 337–339."

[4] Subsection A is entitled "The Nature of the District Court Decision as a Limitation on Appeals from Dismissals," and begins with the statement that "[t]he now-archaic terminology employed in the original statute . . . unnecessarily precludes the Government from appealing many dismissals of prosecutions." S. Rep. No. 91–1296, at 5. The Report then states that the current Act "does not provide for an appeal by the United States to any court in a large variety of cases where the dismissal is based